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Count(s)	Word(s)	Char(s)	Char(s) (WS)
Section 1	**1349**	**7451**	**8782**
Section 2	**889**	**4953**	**5830**
Section 3	**745**	**4162**	**4900**
Total	**2983**	**16566**	**19512**

Answer-to-Question-_1_

A.

Assuming Biden's lawyers/advisors did a good job, we're not in a Youngstown Category 1 situation because the President has no statutory authority.

If we're in Youngstown Category 2, we would be in a "twilight zone" where the President's powers are uncertain. Given that the President's powers in this category largely turn on "the imperative of events and contemporary imponderables," courts likely wouldn't let the President act on behalf of Congress (taking some of their Art I powers) because there's no kind of unforeseen emergency/crisis, but instead the President is reacting to a problem that Congress likely anticipated and had time to respond to through legislation

Thus in both Youngstown Categories 2 and 3, the legal question turns on whether Biden's Art II powers give him the authority to act. The case for discretion is much weaker than Cox given that Biden is not exercising discretion on a case-by-case basis. It's unclear if the case for discretion is as weak as Adams given that (1) it's uncertain whether there are specific statutory enforcement requirements and (2) it's unclear how much affirmative benefits come from the debt cancelation. Cancelling debt is less affirmative support than directly giving money (Cox) and such cancelationg likely is less affirmative support in DACA/DAPA where the decision not to enforce granted other legal benefits through other statues (though we should check if there are similar statues here). The amount of affirmative licensing might also depend on how Biden's cancelation extends into the future (see C).

Ultimately I don't think courts would let Biden exercise discretion here. While this case might be better for the President than DACA/DAPA in terms of the level of affirmative support/licensing, it's much worse in terms of lacking any case-by-case focus making it look a lot more like an illicit attempt to legislate. There are strong historical and structural arguments that the Take Care Clause only creates duties (Seila, Kagan) and there are historical arguments against viewing the Vesting Clause as granting broad perogative powers, so I suspect the Court will be limited in interpreting the non-national security powers from Art II.

B.

Could

Legally, the House can impeach Biden. As mentioned above, there's a strong argument that Biden violated his oath to the Constitution in general and the Take Care Clause in particular. History and recent practice supports a fairly broad interpretation of "High Crimes and Misdemeanors" (at least at the indictment-level where the Hamiltonian view that includes breaches of public trust has been accepted). Biden's constitutional argument in favor of ignoring the law seems weaker than Johnson's in favor of ignoring the Tenure of Office Act (especially after Seila Law). Unlike Johnson who acted against an unprecedented statue of questionable constitutional validity, Biden doesn't have Johnson's defense of

acting in response to an unprecedented norm-violation, so Biden's impeach should be legal even if Biden did not betray the spirit of the country like how Johnson betrayed Reconstruction. While this offense is less related to the other impeachable offense than Trump's first impeachment, Biden's offense is much more clearly a direct violation of the Constitution and much more serious than Clinton's offense.

While the Senate has been more deferential to the President, making the legal question harder, the Senate legally still could convict. Recent impeachment non-indictments (Clinton, Trump) seem more to be motivated by partisanship than any important legal principles. Unlike Johnson's impeachment trial where some Republicans voted against impeachment because they thought Johnson had genuinely misinterpreted the statue, Biden seems to have much more clearly acted outside of the law. If the Thompson Memo represents the Executive Department's best understanding of the legal issues, the President knowingly breached an important constitutional line. Even if Biden has a different take on the constitutional issues, he still had reason to know he violated a durable norm that other Presidents followed unlike Johnson who acted in response to a norm violation.

Politically, it's unclear whether Congress could follow through on impeachment without causing a constitutional crisis (especially if there's no bipartisan support for the impeachment and conviction).

Should

While the offense of ignoring the law affecting millions of people likely is an impeachable offense (going beyond mere "maladministration") based on the original understanding of "High Crimes and Misdemeanor," the Constitution gives the power to impeach to Congress in part so it can make political judgments. Such political consequences (both in the short-term with a constitutional crisis and in the long-term) ultimately mean Congress shouldn't impeach and remove.

In addition to directly creating constitutional crisis, there are concerns about how impeachment/conviction would have dangerous long-term effects through shifting norms about impeachment. As we saw with Commerce Clause jurisprudence, once Congress starts using its power more aggressively, courts struggle to find well-motivated places to draw lines and power ends up expanding cumulatively. This likely would happen with impeachment if it were to be expanded. As we've seen throughout history, the more impeachments have been used, the easier impeachment becomes (we've had one impeachment-scandal in the country's first 100 years and four impeachment-scandals in the last 50 years). It's dangerous to have a norm that Presidents can be impeached whenever there's a colorable argument that they violated the Constitution given that that will almost be the case because the Constitution, by its very design, uses broad language that lacks the "prolixity of a legal code" (McCullough), leading to inevitable ambiguities (that are only exacerbated over time). This problem is compounded by how Art III has been interpreted as preventing the President from getting advisory opinions. Because the President won't be able to receive official constitutional advise from the courts, the President won't have a tool to avoid blame when they act in constitutional gray areas and thus will be

chilled from acting and punished more easily. Moreover, the easier it is to be impeached for genuine constitutional mistakes, being impeached will send a much weaker signal and will be less effective when Presidents genuinely do something terrible. Impeaching and removing for what might've been a genuine constitutional mistake, especially given how frequent the impeach-power has been used recently, thus sets too much of a dangerous precedent.

I'd recommend that Congress respond to Biden by passing a specific law preventing Biden from cancelling debts. If Biden ignores that law (or already has ignored that kind of law), then I think the argument for impeachment would be much stronger. I think we could have a stable equilibrium where the President can be impeached when they ignore direct constitutional orders from Congress.

C.

Scott likely could begin enforcing federal student loans again without any problems, at least in terms of recollecting interest, because Biden's cancelation would be unconstitutional if it was permanently binding on his successors. Clinton held that the President's cancelation of a budget-item under the Line Item Veto Act counted as a change/repeal of a law, as opposed to a permissible exercise of discretion, because it had permanent effects on law. Thus if Biden's cancelation legally bound his successors, then such a cancelation would similarly count as changing/repealing the law and would be unconstitutional for being done unilaterally by the President as opposed to going through the bicameralism and presentment process of Art I, §7 (Clinton).

Even if Biden's cancelation by itself couldn't be permanent, Congress's acquiesce to Biden's actions (where they failed to adequately disapprove of the action) might mean Scott is in Youngstown Categories 2 or 3 where Congress either disapproves of what Scott is doing or their intent is unclear. But given Clinton and Art I, §7's bicameralism and presentment, it's implausible that Congress could change the law (and thus remove the President's direct/implied authority from statue to collect interest/punish) simply through doing nothing.

We thus are in Youngstown Category 1 and Scott's power is at its apex, but I suspect there still would be other constitutional concerns from the Due Process Clause and perhaps the ban on ex post facto punishments if Scott tried to enforce penalties on those who didn't pay their loans during Biden's "cancelation," though those risks might be lessened if Scott very publicly campaigned on changing the policy.

----------ANSWER-1-ABOVE----------

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----------ANSWER-2-BELOW----------

Tax?

Based on Bailey and Sebelius, the GFSPT is not a tax under Congress's taxing-powers: (1) The cost of the tax is probably high enough to be a "prohibitory financial punishment"; (2) there's no scienter requirement;(3) the "tax" is collected by other agencies. (But if the judges thinks it's a tax, GFSPT should be okay because (1) it's likely not a direct tax with an apportionment-requirement, (2) it's uniform, and (3) it's plausibly for the "general welfare.")

GFSPT thus needs to be justified under different enumerated powers. I will first analyze whether the taxes considered independently are justified and then lastly whether anything changes when they're considered together.

Post Office

The post office component of the GFSPT likely is constitutional under the power "to establish Post Office and Post Roads" (Art I, §8) together with the N&P Clause. McCulloch specifically mentions that the power to create post office brings with it an implied power "to punish those whose who steal letters from the post office, or rob the mail" and is part of Marshall's general claim that the power to create includes the power to preserve. The regulation likely is sufficiently related to making post offices operate efficiently and safely to be swept in with the N&P Clause (and isn't too unprecedented/too great of power to be kept out of the N&P Clause based on Roberts' analysis of "proper" in Sebelius, which should be true throughout this analysis).

This component can also be justified under the Commerce Clause and the N&P Clause as either a regulation of the channels or instrumentalities (given that it helps prevent items in the mail from being damaged/stolen) of interstate commerce. Congress has very broad discretion to regulate in these areas (Lopez) and regulating the channels/instrumentalities can extend into purely intrastate activity, so long as it's part of the "intercourse" between states, which post offices clearly are(Gibbons).

State/Federal Courthouse

Congress cannot pass this component of the GFSPT under the Commerce Clause and N&P Clause because (1) it's not a regulation of the instrumentalities/channels of interstate commerce because there's no jurisdictional hook, e.g., limiting the regulation to guns that were in interstate commerce and (2) gun-possession is not an economic activity (Lopez).

Congress likely can justify the regulation as applied to non-SCOTUS federal courthouses through

Art I, §8 giving Congress the power "to constitute Tribunals inferior to the supreme Court" together with the N&P Clause (through the same McCulloch-based argument used about post office). Congress should be able to use its powers to regulate certain logistical operations of the Supreme Court, as the branch that fills in gaps in the Constitution, together with the N&P Clause to extend the regulation to SCOTUS (though this argument is textually weaker).

One could argue that the regulation can extend to state courthouses based on some combination of the Guarantee Clause, the Full Faith and Credit Clause, and the N&P Clause. While courts are more willing to allow the federal government to be involved with state courts than other parts of state governments (Printz) and the federal government can regulate traditional functions of state governments (Garcia), these arguments are too textually/doctrinally attenuated to be plausible.

Even if the law is otherwise allowed to apply to state courthouses it likely can't apply to state officials possessing guns in/near courthouses as part of their official capacity (Printz and Murphy, confirming that the anticomandeering doctrine extends to orders not to do something). These same anticomandeering worries extend whenever the GFSPT is applied to state officials.

An alternative argument is that Congress can regulate state courthouses as part of its constitutional regulation on federal courthouses together with the N&P Clause (cf. Raich). This argument doesn't work because unlike with marijuana, where legalizing some kinds of marijuana arguably makes it impractical for law enforcement officers to control other marijuana, law enforcement can easily treat federal courthouses differently from purely-state courthouses. Moreover, unlike in Raich, where the court allowed the N&P to bring in regulation of a much smaller population in order to effectively regulate a much larger population, this case would be the reverse.

Schools

This component of the GFSPT is indistinguishable from Lopez and cannot be constitutionally passed under the Commerce Clause and N&P Clause. It's too much of a stretch to try to use anything else, e.g. armies/militia clauses.

Train Station

This part of the regulation is likely constitutional under the Commerce Clause and N&P Clause as a regulation of the instrumentalities and channels of interstate commerce just like post-offices (Lopez). There's no problem in regulating train stations controlled/operated by states (Garcia).

Entire Regulation?

Assuming the GFSPT's provisions that target postal offices, federal courthouses, and train stations are constitutional, we could argue that the regulation of guns in schools/state courthouses is constitutional

as part of an overall regulatory scheme that pursues a constitutionally permitted end, given the N&P Clause (cf. Raich). This argument though will probably fail given that it's implausible that keeping guns outside of the last two areas is needed to effectively keep guns outside of the first three areas (unless keeping guns away from anywhere requires keeping guns away from everywhere). Congress likely thinks enforcement of the different provisions is distinct/non-interrelated given that they are enforced by different agencies. Thus, even if we apply a rational-basis test that's very deferential to Congress, these Raich-style arguments will probably fail.

----------ANSWER-2-ABOVE----------

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----------ANSWER-3-BELOW----------

Answer-to-Question-_3_

The constitutional debates about the first and second banks of the United States are a good model for what public debate about the structure of government can look like. Different parties advanced different visions of how the federal government should interface with the economy. The Court, under Marshall, was sensitive to this conversation and gave the political branches broad discretion about how to act. The national conversation continued and democratic (by the standards of their time) majorities, through Jackson changed their mind and decided against a bank.

Imagine counterfactually that Marshall in McCullough had worked his legal jujitsu and said that the Constitution forbids the creations of corporation but that the bank wasn't really a corporation. There would have been much more legal uncertainty and perhaps during the New Deal we would've struggled to fit the needs of the 20th-century into 18th-century legal models, making incremental legal changes but never having any clear theory on how institutions like government banks can or should be structured.

That counterfactual is eerily similar to where we are with the administrative state, and I'd propose the following amendment to try to get closer to the healthier alternative by channeling questions of governmental structure away from illusive/dishonest legal doctrine and into a healthy democratic dialogue:

Congress shall have the power to create administrative agencies that exercise legislative, executive, and judicial power provided that they do not unduly encroach on powers fundamental to Congress, the President, and the courts. Officers of such agencies can be appointed and removed and their decisions can

be reviewed through procedures designed by Congress based on public policy goals. Legislation creating such agencies will sunset within 20 years of being enacted.

While constitutional law given its mixture of path-dependence and concern with first-principles will always be somewhat mushy/confusing, the legal standing of administrative agencies is particularly strange. Formal legal doctrine requires us to pretend that administrative agencies live squarely within Art II and are never delegated legislative power, while actual political needs creates the need for more flexibility (as is acknowledged by Humphrey's Executor). We thus are left with a strange mix of flexibility (e.g. the intelligible principle doctrine for nondelegation) and arbitrary restraints (e.g. Chadha's ban on the single-house veto) that has developed through ad hoc decisions). As White notes in Chadha, this mix of formalism and flexibility often is the worst of both worlds because we are relaxed in allowing Congress to give power away but then become stingy when Congress tries to introduce new checks. The confusing legal doctrine here is a conversation stopper that gets in the way of any actual democratic debate about how constitutional values should be best advanced in the context of a modern government and economy and creates "hydraulic pressure" that distorts other parts of the doctrine (Gundy, Gorsuch).

While Congress will be far from perfect in crafting the right structure for the administrative state, they do seem better positioned to engage in policy questions about what kind of structure makes sense in our modern economy/society than courts who, e.g., in commerce clause jurisprudence who struggled to articulate sensible lines. Having an explicit sunset-provision will force Congress to regularly rethink if it's drawn the line in a good place, instead of inertia setting in and courts being left in the bad position of having to find clear lines in inherently mushy language. This sunset-provision will help prevent the government's structure from getting too out of line with democratic values that will to a massive destabilizing shift, e.g. FDR's court-packing threats and the confusion of Commerce Clause jurisprudence post-Darby. Shifting democratic conversations towards questions of structure might also help find common ground that will be good more broadly for our democracy.

The biggest sources of ambiguity in the amendment is interpreting what counts as an "undue encroachment on the powers fundamental" to the three branches are that can't be delegated away. One interpreter might take a historical approach and say such an undue encroachment is something that takes a power away from a branch that it kept to itself at the time of the amendment's ratification. Another interpreter might take a more structural approach and think Congress can't delegate powers that are specifically mentioned/enumerated in Art I. Thus both interpreters would agree that Congress can't delegate its whole power to pass laws to an administrative agency but would disagree over how much administrative agencies can take over Congress's power to regulate interstate commerce or the President's foreign policy powers.